

Date

Name of Caregiver(s)

Address

Address

SERVICE CASE ID:

(Specific Regulation Supporting Decision)

REASONS FOR ACTION:

Service Being Affected

- ☐ Services to Families with Children – Intake
- ☐ Family Preservation Services
- ☐ Risk of Harm Services
- ☐ Inter-Agency Family Preservation (LDSS based)
- ☐ Request of Another Agency (ROA)
- ☐ Voluntary Placement Request Time-Limited
- ☐ Voluntary Placement Request Child w/Disability
- ☐ Voluntary Placement Request Enhanced After Care
- ☐ Permanency Services
- ☐ Independent Living Aftercare Services
- ☐ Guardianship Assistance Program (GAP)
- ☐ Adoption Subsidy
- ☐ Adoption Services (One Time Only)
- ☐ Kinship Navigation Services
- ☐ Resource Homes
- ☐ Inter-State Compact

Reason for the Action

- ☐ Child(ren) assessed to be safe
- ☐ Service objectives have been achieved
- ☐ Family no longer wants service
- ☐ Family is not actively progressing toward meeting the objectives of the Service Plan
- ☐ Agency-related court involvement has been terminated
- ☐ Family has moved to another jurisdiction
- ☐ Referral made to another service program
- ☐ Family cannot be located
- ☐ Other
Specify:

Action to Be Taken

- ☐ Close case
- ☐ Transfer case
Specify:

- ☐ Other
Specify:

Department's Services and Recommendations. *(Discuss reason for service, the decision, the basis for the decision (to include service progress, the need for other services, any referrals made on behalf of the family), and the reason for closure or transfer.)*

If you do not agree with this action or decision, please contact me. We can discuss the basis for the action or decision and your right to appeal. Appeal procedures are included with this letter.

If additional services are needed in the future, please contact your local department of social services for assistance. You can also call toll free 1-800-332-6347 | TTY 800-925-4434, or go to <https://dhs.maryland.gov/local-offices/> for additional information and assistance.

Sincerely,

Worker Name

Worker Title

Worker Phone Number

Supervisor Name

Supervisor Title

Supervisor Phone Number

DHR/SSA 1068A (02/2020)

Record

Original – Family Member

Copy – Case

INTENDED ACTION LETTER INSTRUCTIONS FOR THE FAMILY

You may also file an appeal to have a hearing before an administrative law judge (“ALJ”) from the Office of Administrative Hearings (“OAH”) but you must do so **within 90 days** of the date of the Intended Action letter. You can contact the worker or supervisor to obtain more information about how to file an appeal. Your local department has the necessary form (Request for Hearing form DHR/FIA 334) and will assist you.

NOTE: IF YOU DISAGREE WITH AN INVESTIGATION FINDING REGARDING CHILD ABUSE OR NEGLECT OR A COURT DECISION, THIS IS NOT THE APPEAL PROCESS FOR YOU TO FOLLOW.

WHAT HAPPENS WHEN YOU APPEAL

If you are going to appeal, you must file a request for a hearing **within 90 days** of receipt the enclosed Intended Action letter.

If you have any questions about your right to appeal, please call your local department at the telephone number listed under the worker or supervisor's name on the enclosed letter.

INSTRUCTIONS FOR THE AGENCY

This form shall be used for notifications of intended action or decision of the local department of social services on child welfare services cases.

The Intended Action Letter should briefly describe in appropriate language your reasons for the intended action. The law requires that notifications include: **the decision, the basis for the decision (to include service progress; the need for other services; referrals made on behalf of the family, if any; and/or the reason for closure) and the specific regulation supporting the decision.** See the Code of Maryland Regulations (COMAR) to assist you in identifying the specific COMAR provision forming the basis for the intended action or decision. An updated version of COMAR may be accessed online at www.dsd.state.md.us/comar/subtitle_chapters/Titles.aspx.

The Intended Action Letter should be mailed **at least 10 days** before the intended action or effective date of the agency's decision in order to provide a customer with the opportunity to have services continued, and not stopped, during the appeal process.

If the client requests an appeal after reviewing this letter, mail the client the **DHR/FIA 334 – Request for Hearing form**.